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Case Number: 25CHCV02439 Hearing Date: August 11, 2026 Dept: F49

Dept. F49

Date: 8/11/26

Case Name: Maria Guadalupe Luna vs. Six Flags

Entertainment Corporation; Magic Mountain LLC; and Does 1-50

Case No. 25CHCV02439

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

AUGUST 11, 2026

MOTION TO COMPEL FURTHER

RESPONSES TO REQUESTS FOR PRODUCTION; REQUEST FOR SANCTIONS

Los Angeles Superior

Court Case No. 25CHCV02439

Motion filed: 3/11/26

MOVING PARTY: Plaintiff Maria Guadalupe Luna

RESPONDING PARTY: Defendant Magic Mountain LLC

NOTICE: OK

RELIEF REQUESTED: An order from this Court compelling Defendant Magic Mountain LLC to serve further responses to Plaintiff's first set of requests for production of documents; and awarding sanctions.

TENTATIVE RULING: The motion is GRANTED. The request for sanctions is GRANTED IN PART.

BACKGROUND

This action arises from injuries allegedly sustained by Plaintiff Maria Guadalupe Luna ("Plaintiff") when she fell from a defective seating wall at Defendants' theme park. On July 10, 2025, Plaintiff filed the Complaint against Defendants Six Flags Entertainment Corporation ("Six Flags"), Magic Mountain LLC ("Magic Mountain") (collectively, "Defendants"), and Does 1 through 50, alleging negligence and premises liability.

On October 31, 2025, Defendants filed their joint Answer to the Complaint.

On March 11, 2026, Plaintiff filed the instant motion to compel Magic Mountain's further responses to Plaintiff's first set of requests for production of documents (the "Motion").

At the Case Management Conference on April 8, 2026, the parties were ordered to meet and confer regarding outstanding discovery. Pursuant to that order, on June 29, 2026, the parties filed a Joint Status Conference Report.

On July 29, 2026, Magic Mountain filed an Opposition.

No reply papers have been filed.

ANALYSIS

“On

receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply: (1) A statement of compliance with the demand is incomplete. (2) A representation of inability to comply is inadequate, incomplete, or evasive. (3) An objection in the response is without merit or too general.” (Code Civ. Proc., § 2031.310, subd. (a).)

A.

Procedural Requirements

(1)

Timeliness of Motion

A party must bring a motion to compel further responses to requests for production within 45 days after the responding party serves verified responses or supplemental verified responses. (Code Civ. Proc., § 2031.310, subd. (c).) Parties may also agree in writing to a specific later date by which to file a motion to compel further responses. (Ibid.) If a motion to compel further responses is not timely made, the propounding party waives any right to compel a further response. (Ibid.)

Plaintiff’s counsel attests that Magic

Mountain served responses to Plaintiff’s Request for Production of Documents (Set One) on January 23, 2026. (Asiryan Decl., ¶ 4.) Proof of service attached to the responses indicates that they were served via email. (Id., Exh.

B.) The deadline to move to compel further responses was accordingly March 11, 2026. (Code Civ. Proc., §§ 1010.6, 2031.310.) The Motion, filed on March 11, 2026, was therefore timely.

(2)

Meet and Confer

A motion to compel further responses to a demand for production must be accompanied by a meet and confer declaration under Section 2016.040. (Code Civ. Proc., § 2031.310, subd. (b)(2).) “A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by

videoconference, to informally resolve each issue presented by the motion.”
(Code Civ. Proc., § 2016.040.)

“The level of effort at informal resolution which satisfies the ‘reasonable and good faith attempt’ standard depends upon the circumstances.” (Obregon v. Superior Court (1998) 67 Cal.App.4th 424, 431.) Relevant factors a court may consider in determining whether a reasonable and good faith attempt was made include “[t]he history of the litigation, the nature of the interaction with counsel, the nature of the issues, the prospects for success and other similar factors.” (Ibid.)

Plaintiff’s counsel attests that she sent a meet-and-confer letter to Defendants’ counsel on February 17, 2026, requesting further responses to the requests for production and outlining the grounds for the request. (Asiryan Decl., ¶ 5.) On March 3, 2026, Defendants’ counsel requested an additional week to respond to Plaintiff’s meet-and-confer letter. (Id., Exh. D.) On March 9, 2026, Defendants’ counsel sent correspondence to Plaintiff’s counsel regarding Magic Mountain’s own discovery requests. (Id., ¶ 7.) The next day, on March 10, 2026, Magic Mountain filed three motions to compel further responses to those requests. (Id., ¶ 8.) Defendants’ counsel never responded substantively to Plaintiff’s meet-and-confer correspondence.

Magic Mountain contends that the Motion should be denied in its entirety as procedurally deficient because: (1) Plaintiff’s counsel did not attempt to meet in person, by telephone, or via video conference, and (2) Plaintiff’s declaration does not include any reference to the retention of a certified shorthand reporter as required by Code of Civil Procedure section 2016.040. (Opp’n, at p. 2.)

Magic Mountain is correct that written correspondence does not generally satisfy the in-person or telephonic meet-and-confer requirement of the Discovery Act and that the Act now requires parties to declare whether they met and conferred regarding the retention of a certified shorthand reporter. (Code Civ. Proc., § 2016.040, subd. (b).) However, the Court does not find the noted deficiencies to be sufficient to warrant outright denial of the Motion. A categorical denial of discovery due to insufficient meet and confer is “reserved for cases of clear intent to burden or harass, cases of clear flaunting of statutory responsibilities, cases of established track records of lack of good faith, and the like.” (Obregon, supra,

67 Cal.App.4th, at p. 434.) And failure to include a statement concerning whether the parties discussed the retention of a reporter for the hearing is a technical defect that does not bear on the adequacy of meet-and-confer efforts or the substance of the discovery at issue.

(3)

Separate Statement

“Any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement. The motions that require a separate statement include a motion ... (3) To compel further responses to a demand for inspection of documents or tangible things.” (Cal. Rules of Court, Rule 3.1345, subd. (a).) The separate statement must “provide[] all information necessary to understand ... all the responses ... that are at issue” and “be full and complete so that no person is required to review any other document in order to determine the full request and the full response.” (Id., Rule 3.1345, subd. (c).)

Plaintiff has filed a separate statement

concurrently with the Motion, identifying each response at issue, stating the text of both the request and response, and providing reasons for compelling further response. The Court thus finds that Plaintiff has complied with the separate statement requirement.

B.

Motion to Compel Further Responses to Requests
for Production

The party to whom a demand for production has been made must respond separately to each demand by any of the following: (1) a statement that the party will comply with the demand by the date set; (2) “[a] representation that the party lacks the ability to comply with the particular demand;” or (3) an objection to the demand. (Code Civ. Proc., § 2031.210, subd. (a).)

A statement of compliance with a particular demand must state whether compliance will be made in whole or in part, and “that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production.” (Code Civ. Proc., § 2031.220.)

“A representation of inability to comply with [a] particular demand ... shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party.” (Code Civ. Proc., § 2031.230.) The statement must also set forth the name and address of any person or organization known or believed to have possession, custody, or control of that item or category of item. (Ibid.)

If the responding party objects to the demand, the response must: (1) identify with particularity any document or item falling within the category of the demand to which an objection is being made; and (2) clearly set forth the extent of and specific ground for the objection. (Code Civ. Proc., § 2031.240, subd. (b).) “If an objection is based on a claim of privilege, the particular privilege invoked shall be stated.” (Id., § 2031.240, subd. (b)(2).)

Plaintiff asserts that Magic Mountain served only boilerplate objections to the requests for production, providing no substantive information at all. (Mot., at p. 6.) Upon review, the two-page response consists of a preliminary statement and two paragraphs of objections purporting to apply to all 19 requests. (Asiryan Decl., Exh. B.) The Court agrees with Plaintiff that the objections are asserted in generalized and boilerplate fashion and fail to comply with Discovery Act’s requirement that a response identify documents with particularity and clearly set forth the extent of the objection. (See Code Civ. Proc., § 2031.240, subd. (b).)

In addition to identifying the insufficiency of responses to a demand for production, a motion to compel further response “shall set forth specific facts showing good cause justifying the discovery sought by the demand.” (Code Civ. Proc., § 2031.310, subd. (b)(1).) Good cause may be shown by a fact-specific showing of relevance. (Kirkland v. Superior Court (2002) 95 Cal.App.4th 92, 98.) Information is relevant to the subject matter if it “might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement.” (Lipton v. Superior Court (1996) 48 Cal.App.4th 1599, 1611, emphasis omitted.)

Plaintiff's requests for production seek documents concerning statements and reports made about the incident, visual evidence of the incident, maintenance and inspection policies, insurance, and Magic Mountain's contentions of liability and its affirmative defenses. (See generally, Separate Statement ("SS").) Plaintiff asserts that the requested documents are relevant to her allegations and damages, specifically to establishing the circumstances of the subject incident and establishing Magic Mountain's negligence in maintaining its premises. (Mot., at p. 6; SS, at pp. 3-4.) Magic Mountain does not dispute the relevance of the requests, which is evident from the nature of the claims. The Court accordingly finds that good cause exists to compel further response.

In Opposition, Magic Mountain acknowledges that it served objections-only responses to the interrogatories, stating that it was gathering the necessary information and documents to respond to Plaintiff's discovery and "always intended on serving [substantive] responses." (Opp'n, at p. 2.) Magic Mountain indicates that it "anticipates serving further responses before the hearing date," and that service of the further response will render the Motion moot. (Ibid.)

There is no indication that Magic Mountain has, in fact, served substantive responses that comply with the Discovery Act, despite more than six months elapsing since the objections were served. The Court accordingly finds that the Motion has not been rendered moot.

Based on the foregoing, the Court GRANTS the Motion.

C. Monetary Sanctions

"The court may impose a monetary sanction and order that one engaging in the misuse of the discovery process ... pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct." (Code Civ. Proc. § 2023.030, subd. (a).) Misuse of the discovery process includes making an evasive response to discovery. (Id., § 2023.010, subd. (f).)

"[T]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who

unsuccessfully makes or opposes a motion to compel a further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.310, subd. (h).)

Magic Mountain contends that sanctions would be unjust because of Plaintiff's unwillingness to meet and confer. (Opp'n, at p. 3.) The parties present conflicting information regarding meet-and-confer communications between counsel prior to the Motion being filed. Plaintiff's counsel submits an email she received from Defendants' counsel on March 3, 2026, requesting an additional week to respond to Plaintiff's meet-and-confer letter. (Asiryan Decl., Exh. D.) Plaintiff's counsel attests that she granted the extension. (Id., ¶ 6.) Magic Mountain contends in Opposition that the request was made on March 10, 2026, and Plaintiff's counsel did not answer the request. (Opp'n, at p. 3.)

In their Joint Status Conference Report (“Joint Status Report”) filed on June 29, 2026, the parties indicate that Plaintiff's counsel reached out to Defendants' counsel to schedule a remote meet-and-confer conference pursuant to the Court's April 8, 2026 order to meet and confer, but that Defendants' counsel did not respond. (Joint Status Report, at p. 2.) The parties further indicate that Plaintiff's counsel sought to remain on Zoom conference after taking the deposition of Defendants' PMQ, but Defendants' counsel declined. (Ibid.)

The purpose of the meet-and-confer requirement is to encourage parties to resolve their differences informally without the necessity of a formal court order. (Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1293.) Plaintiff's subsequent efforts to meet and confer, combined with the fact that, as of the filing of the Opposition, Magic Mountain has not served further responses to Plaintiff's discovery, demonstrate that additional communications by Plaintiff's counsel would not have rendered motion practice unnecessary. The Court thus disagrees with Magic Mountain that circumstances would render the imposition of sanctions unjust.

The Court notes that the Motion requests sanctions based on counsel's hourly rate of \$350.00, but the declaration of Plaintiff's counsel only sets forth facts supporting an hourly rate of \$300.00, requesting total fees and costs in the amount of \$1,260.00. (Mot., at p. 8; Asiryan Decl., ¶ 12.) The Court's award is limited to the amount supported

by evidence. Plaintiff's counsel attests that she spent two hours preparing the Motion and expects to spend one hour preparing any reply papers and one hour attending the hearing. (Ibid.) Plaintiff also seeks recovery of the \$60 fee for filing the Motion. The Court finds the hourly rate of \$300 to be reasonable. However, given that no reply papers were filed and the Motion is substantially similar to Plaintiff's other motions to compel further discovery responses which have already been heard, the Court finds the total reasonable award to be \$510.00 (0.5 hours for preparation of the Motion and one hour for appearance at the hearing, plus the \$60.00 filing fee).

The request for sanctions is thus GRANTED
IN PART.

CONCLUSION

Plaintiff Maria Guadalupe Luna's motion to compel Defendant Magic Mountain LLC to further respond to Plaintiff's Request for Production of Documents (Set One) is GRANTED. Magic Mountain LLC is ordered to serve verified further responses to Plaintiff's Request for Production of Documents (Set One) within 30 days.

Plaintiff's request for monetary sanctions is GRANTED IN PART. Defendant Magic Mountain LLC and its counsel of record are ordered to pay \$510.00, jointly and severally, to Plaintiff's counsel within 30 days.

Moving party to give notice.

MOTION TO COMPEL FURTHER
RESPONSES TO REQUEST FOR ADMISSIONS; REQUEST FOR SANCTIONS

Los Angeles Superior
Court Case No. 25CHCV02439

Motion filed: 3/11/26

MOVING PARTY: Plaintiff Maria Guadalupe Luna

RESPONDING PARTY: Defendant Magic Mountain LLC

NOTICE: OK

RELIEF REQUESTED: An order from this Court compelling Defendant Magic Mountain LLC to serve further responses to Plaintiff's Request for Admissions, Set One; and awarding sanctions.

TENTATIVE RULING: The motion is GRANTED. The request for sanctions is GRANTED IN PART.

BACKGROUND

This action arises from injuries allegedly sustained by Plaintiff Maria Guadalupe Luna ("Plaintiff") when she fell from a defective seating wall at Defendants' theme park. On July 10, 2025, Plaintiff filed the Complaint against Defendants Six Flags Entertainment Corporation ("Six Flags"), Magic Mountain LLC ("Magic Mountain") (collectively, "Defendants"), and Does 1 through 50, alleging negligence and premises liability.

On October 31, 2025, Defendants filed their joint Answer to the Complaint.

On March 11, 2026, Plaintiff filed the instant motion to compel Magic Mountain's further responses to Plaintiff's Request for Admissions, Set One (the "Motion").

At the Case Management Conference on April 8, 2026, the parties were ordered to meet and confer regarding outstanding discovery. Pursuant to that order, on June 29, 2026, the parties filed a Joint Status Conference Report.

On July 30, 2026, Magic Mountain filed an Opposition.

No reply papers have been filed.

ANALYSIS

"On receipt of a response to requests

for admissions, the party requesting admissions may move for an order compelling a further response if that party deems that either or both of the following apply: (1) An answer to a particular request is evasive or incomplete. (2) An objection to a particular request is without merit or too general.” (Code Civ. Proc., § 2033.290, subd. (a).)

A.

Procedural Requirements

(1)

Timeliness of Motion

A party must bring a motion to compel further responses to requests for admission within 45 days after the responding party serves verified responses or supplemental verified responses. (Code Civ. Proc., § 2033.290, subd. (c).) Parties may also agree in writing to a specific later date by which to file a motion to compel further responses. (Ibid.) If a motion to compel further responses is not timely made, the propounding party waives any right to compel a further response. (Ibid.)

Plaintiff’s counsel attests that Magic Mountain served responses to Plaintiff’s Request for Admissions, Set One on January 23, 2026. (Asiryan Decl., ¶ 4.) Proof of service attached to the responses indicates that they were served via email. (Id., Exh. B.) The deadline to move to compel further responses was accordingly March 11, 2026. (Code Civ. Proc., §§ 1010.6, 2033.290.) The Motion, filed on March 11, 2026, was therefore timely.

(2)

Meet and Confer

A motion to compel further responses to requests for admission must be accompanied by a meet and confer declaration under Section 2016.040. (Code Civ. Proc., § 2033.290, subd. (b)(1).) A meet and confer declaration must “state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040.)

“The level of effort at informal resolution which satisfies the ‘reasonable and good faith attempt’ standard depends upon the circumstances.” (Obregon v. Superior Court (1998) 67

Cal.App.4th 424, 431.) Relevant factors a court may consider in determining whether a reasonable and good faith attempt was made include “[t]he history of the litigation, the nature of the interaction with counsel, the nature of the issues, the prospects for success and other similar factors.” (Ibid.)

Plaintiff’s counsel attests that she sent a meet-and-confer letter to Defendants’ counsel on February 17, 2026, requesting further responses to the requests for admission and outlining the grounds for further response. (Asiryan Decl., ¶ 5.) On March 3, 2026, Defendants’ counsel requested an additional week to respond to Plaintiff’s meet-and-confer letter. (Id., Exh. D.) On March 9, 2026, Defendants’ counsel sent correspondence to Plaintiff’s counsel regarding Magic Mountain’s own discovery requests. (Id., ¶ 7.) The next day, on March 10, 2026, Magic Mountain filed three motions to compel further responses to those requests. (Id., ¶ 8.) Defendants’ counsel never responded substantively to Plaintiff’s meet-and-confer correspondence.

Magic Mountain contends that the Motion should be denied in its entirety as procedurally deficient because: (1) Plaintiff’s counsel did not attempt to meet in person, by telephone, or via video conference, and (2) Plaintiff’s declaration does not include any reference to the retention of a certified shorthand reporter as required by Code of Civil Procedure section 2016.040. (Opp’n, at p. 2.)

Magic Mountain is correct that written correspondence does not generally satisfy the in-person or telephonic meet-and-confer requirement of the Discovery Act and that the Act now requires parties to declare whether they met and conferred regarding the retention of a certified shorthand reporter. (Code Civ. Proc., § 2016.040, subd. (b).) However, the Court does not find the noted deficiencies to be sufficient to warrant outright denial of the Motion. A categorical denial of discovery due to insufficient meet and confer is “reserved for cases of clear intent to burden or harass, cases of clear flaunting of statutory responsibilities, cases of established track records of lack of good faith, and the like.” (Obregon, supra, 67 Cal.App.4th, at p. 434.) And failure to include a statement concerning whether the parties discussed the retention of a reporter for the hearing is a technical defect that does not bear on the adequacy of meet-and-confer efforts or the substance of the discovery at issue.

Separate Statement

"Any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement. The motions that require a separate statement include a motion ... (1) To compel further responses to requests for admission." (Cal. Rules of Court, Rule 3.1345, subd. (a).) The separate statement must "provide[] all information necessary to understand ... all the responses ... that are at issue" and "be full and complete so that no person is required to review any other document in order to determine the full request and the full response." (Id., Rule 3.1345, subd. (c).)

Plaintiff has filed a separate statement concurrently with the Motion, identifying each response at issue, stating the text of both the request and the response, and providing reasons for compelling further response. The Court thus finds that Plaintiff has complied with the separate statement requirement.

B.

Motion to Compel Further Responses to Request
for Admissions, Set One

"The party to whom requests for admission have been directed shall respond in writing under oath separately to each request." (Code Civ. Proc., § 2033.210, subd. (a).) "Each response shall answer the substance of the requested admission, or set forth an objection to the particular request." (§ 2033.210, subd. (b).)

"Each answer in a response to requests for admission shall be as complete and straightforward as the information reasonably available to the responding party permits." (Code Civ. Proc., § 2033.220, subd. (a).) "Each answer shall: (1) Admit so much of the matter involved in the request as is true, either as expressed in the request itself or as reasonably and clearly qualified by the responding party. (2) Deny so much of the matter involved in the request as is untrue. (3) Specify so much of the matter involved in the request as to the truth of which the responding party lacks sufficient information or knowledge." (§ 2033.220, subd. (b).)

"If a responding party gives lack of information or knowledge as a reason for a failure to admit all or part of a

request for admission, that party shall state in the answer that a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter.” (Code Civ. Proc., § 2033.220, subd. (c).)

Plaintiff asserts that Magic Mountain served only boilerplate objections to Plaintiff's request for admissions, providing no substantive responses at all. (Mot., at p. 6.) Upon review of Magic Mountain's two-page response, it consists of a preliminary statement and two paragraphs of blanket objections that purportedly apply to all 12 requests. (Asiryan Decl., Exh. B.) The Court agrees with Plaintiff that the objections are asserted in generalized and boilerplate fashion and fail to respond separately to each request as required by the Discovery Act. Magic Mountain's response is accordingly not code-compliant, and further response is warranted.

In Opposition, Magic Mountain acknowledges that it served objections-only responses to the requests, stating that it was gathering the necessary information and documents to respond to Plaintiff's discovery and “always intended on serving [substantive] responses.” (Opp'n, at p. 2.) Magic Mountain indicates that it “anticipates serving further responses before the hearing date,” and that service of the further response will render the Motion moot. (Ibid.)

There is no indication that Magic Mountain has, in fact, served responses that comply with the Discovery Act, despite more than six months elapsing since the objections were served. The Court accordingly finds that the Motion has not been rendered moot.

Based on the foregoing, the Court GRANTS the Motion.

C.

Monetary Sanctions

“The court may impose a monetary sanction and order that one engaging in the misuse of the discovery process ... pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct.” (Code Civ. Proc. § 2023.030, subd. (a).) Misuse of the discovery process includes making an evasive response to discovery. (Id., § 2023.010, subd. (f).)

“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2033.290, subd. (d).)

Magic Mountain contends that sanctions would be unjust because of Plaintiff's unwillingness to meet and confer. (Opp'n, at p. 3.) The parties present conflicting information regarding meet-and-confer communications between counsel prior to the Motion being filed. Plaintiff's counsel submits an email she received from Defendants' counsel on March 3, 2026, requesting an additional week to respond to Plaintiff's meet-and-confer letter. (Asiryan Decl., Exh. D.) Plaintiff's counsel attests that she granted the extension. (Id., ¶ 6.) Magic Mountain contends in Opposition that the request was made on March 10, 2026, and Plaintiff's counsel did not answer the request. (Opp'n, at p. 3.)

In their Joint Status Conference Report (“Joint Status Report”) filed on June 29, 2026, the parties indicate that Plaintiff's counsel reached out to Defendants' counsel to schedule a remote meet-and-confer conference pursuant to the Court's April 8, 2026 order to meet and confer, but that Defendants' counsel did not respond. (Joint Status Report, at p. 2.) The parties further indicate that Plaintiff's counsel sought to remain on Zoom conference after taking the deposition of Defendants' PMQ, but Defendants' counsel declined. (Ibid.)

The purpose of the meet-and-confer requirement is to encourage parties to resolve their differences informally without the necessity of a formal court order. (Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1293.) Plaintiff's subsequent efforts to meet and confer, combined with the fact that, as of the filing of the Opposition, Magic Mountain has not served further responses to Plaintiff's discovery, demonstrate that additional communications by Plaintiff's counsel would not have rendered motion practice unnecessary. The Court thus disagrees with Magic Mountain that circumstances would render the imposition of sanctions unjust.

The Court notes that the Motion requests sanctions based on counsel's hourly rate of \$350.00, but the declaration of

Plaintiff's counsel only sets forth facts supporting an hourly rate of \$300.00, requesting total fees and costs in the amount of \$1,260.00. (Mot., at p. 8; Asiryan Decl., ¶ 12.) The Court's award is limited to the amount supported by evidence. Plaintiff's counsel attests that she spent two hours preparing the Motion and expects to spend one hour preparing any reply papers and one hour attending the hearing. (Ibid.) Plaintiff also seeks recovery of the \$60 fee for filing the Motion. The Court finds the hourly rate of \$300 to be reasonable. However, given that no reply papers were filed and the Motion is substantially similar to Plaintiff's other motions to compel further discovery responses which have already been heard, the Court finds the total reasonable award to be \$510.00 (0.5 hours for preparation of the Motion and one hour for appearance at the hearing, plus the \$60.00 filing fee).

The request for sanctions is thus GRANTED
IN PART.

CONCLUSION

Plaintiff Maria Guadalupe Luna's motion to compel Defendant Magic Mountain LLC to further respond to Plaintiff's Request for Admissions, Set One is GRANTED. Magic Mountain LLC is ordered to serve verified further responses to Plaintiff's Request for Admissions, Set One within 30 days.

Plaintiff's request for monetary sanctions is GRANTED IN PART. Defendant Magic Mountain LLC and its counsel of record are ordered to pay \$510.00, jointly and severally, to Plaintiff's counsel within 30 days.

Moving party to give notice.